

(T 640/91, OJ 1994, 918; G 7/93, OJ 1994, 775; see also chapter V.A.3.4). This rule also applies with respect to opposition division decisions on the admission (T 1209/05, T 1652/08, T 1852/11, T 2513/11) or non-admission (T 1485/08, T 1253/09, T 1568/12, T 1883/12, T 1271/13, T 1690/15, T 1711/16) of late-filed submissions. It is not the function of a board of appeal to review all the facts and circumstances of the case as if it were in the place of the department of first instance in order to decide whether or not it would have exercised such discretion in the same way (T 75/11; see however T 544/12, where the opposition division did not give sufficient reasons for its decision).

This discretionary power has to be exercised reasonably after hearing the parties, including in oral proceedings if requested (T 281/00).

In some decisions, however, the boards have taken the view that they could not hold inadmissible and hence disregard a party's submission in the appeal proceedings, if this submission had been admitted by the opposition division, as neither Art. 114(2) EPC nor Art. 12(4) and 13 RPBA 2007 provided a basis for disregarding them (see e.g. T 467/08, T 572/14, see also chapter V.A.3.4.4).

In T 2603/18 the board held that document D23, admitted by the opposition division, on which the opposition decision was based, had become part of this decision on which the appeal was based. For this reason alone, document D23 must be taken into account in the appeal proceedings. Otherwise, a full review of the contested decision would not be possible.

In T 2049/16 the board observed (with reference to T 617/16) that the EPC did not provide any explicit legal basis that would make it possible to retroactively exclude evidence that has been admitted into the proceedings and decided upon at first instance. However, according to the board, it could be argued that the opposition division's decision to admit document D20 was part of the decision under appeal and as such was part of the appeal under Art. 12(2) RPBA 2020 and open to review.

4.5.3 Prima facie relevance

a) Relationship between prima facie assessment and in-depth assessment

According to established case law of the boards of appeal, a decisive criterion for admitting late-filed documents is their prima facie relevance, see e.g. T 1002/92, OJ 1995, 605; T 212/91, T 931/06, T 1883/12 and T 1511/14; for appeal proceedings, see chapter V.A.4.4.6 and in particular chapters V.A.4.1.2, V.A.4.4.6, V.A.4.5.7, V.A.4.5.8, and V.A.4.5.11.

Prima facie relevance is ascertained on the face of the facts, i.e. with **little investigative effort**, which reflects the need for procedural expediency in considering and admitting late-filed facts and evidence (T 1883/12).

In T 1348/16 the board considered that the opposition division, in admitting a document which it had found to be prima facie relevant and potentially prejudicial to the maintenance

of the patent in suit, had based its decision on the right principles and that there was no reason to doubt that it had exercised its discretion in a reasonable way. This was not contradicted by the fact that a detailed analysis of the document later led the opposition division to conclude that it was actually not novelty-destroying and that another document represented the most relevant state of the art. Such an in-depth analysis was not part of the prima facie assessment of the relevance of a document.

In T.1525/17 the board observed that it was inherently contradictory to take late-filed documents as a basis for an in-depth examination of the patentability requirements, and so consider them as to their substance, yet at the same time declare them not admitted, as the opposition division had done in this case, having fully considered documents E5 and E6 in its thorough substantive assessment of inventive step. That assessment had not been referred to explicitly as a prima facie assessment of the documents' relevance; nor could it be regarded implicitly as a matter to be settled before dealing with their non-admission. The refusal to admit them therefore amounted to an erroneous exercise of discretion. See also T.1185/15 (necessary thorough analysis at odds with finding that document is not prima facie relevant) and T.346/16.

b) Relative or absolute concept of relevance

Regarding the examination of evidence, documents and other submissions as to their relevance, one line of case law holds that "irrelevant" means no more "weighty" or "cogent" than those already on file (see e.g. T.611/90, OJ 1993, 50, and also the decisions summarised below).

In T.560/89 (OJ 1992, 725) the board explained that Art. 114(2) EPC 1973 allowed the EPO to disregard documents which contained no more information than the documents filed on time and did not disclose matter which could change the outcome of the decision. In T.1557/05, the appellant (opponent) filed further patent documents as prior art. The board held that late-filed evidence was admissible only if it is prima facie more relevant than the evidence already on file. In this regard the board in T.1883/12 added that relevance was decided in relation to facts to be proven, and if late documents (here: patent documents), on the face of it, were not more relevant to those facts than admitted evidence and thus appeared to add nothing, it was perfectly reasonable in the interest of procedural economy not to admit them.

Similarly, the board in T.1690/15 rejected the appellant's argument that relevance had to be assessed absolutely. It pointed out that an opposition division carried out its prima facie assessment by comparing the features obvious from the disclosure at issue with the claimed subject-matter. If it concluded that those features did not provide it with any evidence beyond that already on file, it could justifiably disregard the disclosure. If it was clearly no better than the previously cited prior art, it could already be assumed that it was no more likely to result in a finding of a lack of patentability.

In another line of case law, however, the boards have held that, in establishing whether a document was prima facie relevant, the decisive factor is **not** whether it is even more relevant than a previously filed document, but rather whether it is prima facie **relevant for**

the outcome of the case (see e.g. T 1652/08, T 66/14 and T 1348/16). The board in T 66/14 further explained that this could not be assessed in isolation from the submissions put forward by the party submitting a document late; in exercising its discretion, the opposition division had to consider what objection the late-filed document was supposed to substantiate.

In T 2165/10, documents E1-E10, which related to an alleged public prior use, had not been admitted into the proceedings by the opposition division. The board held that the prima facie relevance test had been exercised correctly. The opposition division had considered, with regard to novelty, that E1-E10 did not disclose a number of the claimed features and, with regard to inventive step, that they did not deal with the problem underlying the contested patent. Since there was a document (D4) that related to this problem, the board could not find fault in the division's reasoning that the prior use was less relevant as the starting point.

c) Examples

For examples of cases where the boards were satisfied that the opposition division had considered the correct criterion, prima facie relevance, and had done so in detail and in a reasoned manner, see e.g. T 1643/11, T 782/13, T 2513/11, T 572/14 and T 2053/13.

For an example of a case where the board did not agree with the opposition division's view that the late-filed document was not prima facie relevant, see T 591/15.

4.5.4 Submission contrary to fair and expedient procedure

In T 1271/13 the opponent had submitted report D11, underlying a new insufficiency objection, one month before the oral proceedings and a corrected version D11a one day before the oral proceedings. The opposition division had come to the conclusion that the experiment results had not been submitted sufficiently well in advance for the proprietor to have had the opportunity to perform counter-experiments. The very late submission of D11/D11a was contrary to a fair and expedient procedure. The board found that the opposition division had based its discretionary decision not to admit D11/D11a on well-established principles and had not acted in an unreasonable way.

4.5.5 Abuse of proceedings

An abuse occurs where a party deliberately withholds documents for tactical reasons (see e.g. T 1019/92, T 724/03).

In T 17/91 the board took the view that an assertion of public prior use based on the **opponent's own activities** which is submitted after the expiry of the opposition period and in the absence of good reasons for the delay represented an abuse of the proceedings and a breach of the principle of "good faith" which all parties are expected to observe. As soon as evidence was in the possession of the opponent and it was recognisable that it could be highly relevant to the validity of the patent it should be submitted in the proceedings.

By contrast, in T.1019/92 the board held that the fact that an opponent submitted prior art material originating from itself after the end of the opposition period did not constitute an abuse of the proceedings in the absence of evidence that this was done **deliberately for tactical reasons**. Likewise, in T.481/00 the board considered that the maintenance of a prima facie clearly invalid patent as the legal consequence of the late submission of a clearly novelty-destroying prior use allegation in opposition proceedings, albeit still submitted in time to guarantee the patentee's right to be heard, would in the specific circumstances of its case amount to an inappropriate sanction without a sufficient legal basis in the EPC or in the general principles of procedural law applicable under Art. 125 EPC. See, along the same lines, T.2049/16.

However, according to the board in T.1955/13, there were good reasons not to treat an opponent's late-filed allegation of its own public prior use differently for the purposes of admissibility depending on whether it admitted to having withheld the alleged prior art deliberately or claimed simply not to have looked for it earlier. If the lateness of its prior-art search could not be explained by procedural developments that would prompt a reasonable person to search in a particular direction for the first time, the opposition division would not be committing any error in law in applying the case law on abusive withholding of prior art when it came to deciding whether to admit its allegation.

In T.154/95 the board ruled that in opposition or appeal proceedings it was basically irrelevant how an opponent came across documents or other evidence made available to the public. Thus there was nothing to stop an opponent from citing a prior use invoked in the same case by another opponent whose opposition was inadmissible because it had been filed after expiry of the opposition period.

4.5.6 Legitimate expectation that the document is already in the proceedings

In T.68/02 document D16 was discussed extensively by the respondent without objecting to its admission into the proceedings. At the start of the oral proceedings before the opposition division the respondent requested that the document not be admitted into the proceedings. The opposition division as a consequence did not admit the document. The board could not agree with the action of the opposition division in this respect. The discussion of the document by the respondent and the opposition division before the oral proceedings took place led to the normal expectation that the document was already in the proceedings. See also T.1194/08.

4.6. Late submissions of new arguments

4.6.1 New arguments – definition

The Enlarged Board of Appeal defined "new arguments" in opinion G.4/92 (OJ 1994, 149) as being not new grounds or evidence, but reasons based on the facts and evidence which have already been put forward (e.g. T.131/01, OJ 2003, 115). In T.604/01, facts in the legal sense are to be understood as the circumstances and incidents of a case, looked at apart from their legal bearing. In T.926/07 the board stated (with reference to T.92/92) that facts are alleged circumstances/matters which must, where applicable, be substantiated

by evidence. Arguments, by contrast, are the expositions generated when the law is applied to facts and evidence filed on time. Arguments based on facts filed on time were therefore to be admitted at every stage of the opposition and opposition appeal proceedings. See also chapter V.A.4.2.2(i) to n). on the late submission of new arguments in appeal proceedings.

Taking a similar line in **T 861/93**, the board ruled that **decisions** referred to by a party in support of its arguments were never citations which, under Art. 114(2) EPC 1973, could be rejected as being late. Decisions to which a party referred in support of its arguments should be regarded as part of these arguments and should not be rejected as being filed late (doubted in **T 1914/12**).

In **T 131/01** (OJ 2003, 115) the board considered that the reasons why, in the opponent's view, the skilled person would obviously have arrived at the claimed subject-matter with the aid of a particular DE citation constituted a new argument. This document had been **cited and analysed in the notice of opposition** and its content therefore did not constitute new facts. The board in **T 2238/15** similarly took the view that a newly submitted objection of a lack of inventive step over two citations already on file was at best a new argument. Since the contents of those citations, in so far as they were relevant for claim 1 as granted and the additional features according to the first auxiliary request, had already been analysed in the notice of opposition, they were not new facts.

The board in **T 1448/09** observed that, while reference to **common general knowledge** could be an argument, whether that knowledge actually existed was a question of fact.

According to **T 1553/07** arguments also included statements intended to rebut facts which had already been put forward (including evidence). In oral proceedings before the opposition division, the patent proprietor explained why, in its opinion, the public prior use claimed by the opponent had not been established beyond all doubt by the evidence which had been submitted late. The board did not regard the disputing of the prior use claimed by the opponent as constituting the presentation of new facts.

In **T 710/15**, the opponent raised during oral proceedings before the opposition division a new objection under Art. 100(c) EPC. This ground for opposition had been previously validly invoked. The board held that in the case at issue the new objection did not introduce new facts or evidence, but merely a new argument.

According to the board in **T 1914/12**, a "fact" was to be understood as a piece of (allegedly) factual information or a circumstance on which a party based its case, whereas an "argument" was a contention that it based on one or more such facts and that supported the ground it was invoking. To illustrate its point, the board gave the example of an opponent objecting that a claim lacked novelty over the disclosure in a particular paragraph of a prior-art document: the ground invoked would then be lack of novelty (i.e. an assertion that the claimed subject-matter was part of the prior art), and that ground would be based on the argument that the claimed subject-matter was disclosed in the cited paragraph of the document; the fact on which that argument, meanwhile, was based would be the document's wording, a translation or copy of the document being filed as (a piece